

23AHCV01453 23AHCV01453

County: los-angeles
Division: Civil Law and Motion
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Hearing date: 2026-06-30
Motion: DEFENDANT'S MOTION FOR SUMMARY JUDGMENT
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Case Number: 23AHCV01453 Hearing Date: June 30, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

MARIBEL ARREOLA-GONZALEZ, et al.,

Plaintiff(s),

vs.

AHMC SAN
GABRIEL VALLEY MEDICAL CENTER LP, et al.,

Defendant(s).

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CASE NO.: 23AHCv01453

[TENTATIVE]

ORDER RE: DEFENDANT'S MOTION FOR SUMMARY JUDGMENT

Dept.

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8:30

a.m.

June 30,

2026

I. INTRODUCTION

Plaintiffs Maribel Arreola-Gonzalez,

Saul Gonzalez Arreola, and Eva Gonzalez Arreola (collectively, "Plaintiffs")

filed this action against defendant AHMC San Gabriel Valley Medical Center LP

("Defendant") on June 26, 2023, arising from the death of Jorge Gonzalez

("Decedent"). Plaintiffs assert causes of action for wrongful death, negligent

infliction of emotional distress, and a survival action for medical

malpractice.

On March 27, 2026, Defendant filed this motion for summary judgment. The motion is unopposed.

II. LEGAL STANDARD

In reviewing a motion for summary judgment, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) “[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).)

III. DISCUSSION

A.

Plaintiffs’ NIED Claim

Defendant argues that Plaintiff Maribel Arreola-Gonzalez (“Maribel”) cannot prevail on her claim for NIED because it is time-barred.

“Under [Code of Civil Procedure] section 340.5, an action for injury or death against a health care provider based upon such person’s alleged professional negligence must be brought within one year after the plaintiff discovers, or should have discovered, the injury or within 3 years after the date of injury, whichever occurs first. The term ‘professional negligence’ encompasses actions in which “the injury for which damages are sought is directly related to the professional services provided by the health care provider.” (*Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 191.) Since Maribel alleges that she suffered emotional distress while witnessing Defendant’s negligent medical treatment of Decedent, professional negligence forms the basis for her NIED claim and the one-year statute of

limitations applies.

Maribel's NIED claim is

time-barred because it was filed on June 26, 2023, which is one year and five months after she allegedly experienced the emotional distress from witnessing the negligent care provided to Decedent on January 27, 2022. Furthermore, Maribel did not oppose the motion and show that a triable issue of material fact exists. Accordingly, judgment should be entered in favor of Defendant on the NIED claim.

B.

Plaintiffs' Medical Malpractice Claims

In a medical malpractice action, a plaintiff must establish the following elements: "(1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence. [citations.]" (Galvez v. Fields (2001) 88 Cal.App.4th 1410, 1420.) A defendant moving for summary judgment in a medical malpractice action must "present evidence that would preclude a reasonable trier of fact from finding it was more likely than not that their treatment fell below the standard of care." (Johnson v. Superior Court (2006) 143 Cal.App.4th 297, 305.) "When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence." (Munro v. Regents of University of California (1989) 215 Cal.3d 977, 984-985.)

Defendant argues that the care provided by the physicians and nursing staff met the standard of care in all respects. Defendant also argues that it is not vicariously liable for the conduct of any physicians under an ostensible agency theory. As discussed below, Defendant meets its moving burden by submitting expert declarations stating that the treating physicians and hospital staff complied with the standard of care in their treatment of Decedent. Therefore, the Court need not address whether an ostensible agency theory is viable.

First, Defendant submits an expert declaration

from Andrew Wachtel, M.D., a physician in board-certified in internal medicine and pulmonary medicine who has been in private practice since 1986 in California. (Wachtel Decl., ¶¶ 2-3.) Dr. Wachtel states that based on his review of Decedent's medical records, wound care photos, radiologic imaging, the pleadings, discovery responses, and deposition transcripts, in addition to his knowledge, education, background, training, and experience treating septic shock and patient admission to the intensive care unit ("ICU"), he opines that the care and treatment rendered to Decedent was appropriate at all times given Plaintiffs' allegations that Decedent was not timely transferred to the ICU or an acute care hospital and that Decedent's inability to move his extremities and loss of sensation on January 27, 2022, was not adequately responded to. (Id., ¶¶ 5-8.) Dr. Wachtel states that Decedent presented with a medical history of hypoxia, hypotension, and clinical findings of sepsis, and the treating physicians appropriately initiated a sepsis management protocol, escalated respiratory support from nasal cannula to non-rebreather mask, and subsequently to BiPAP, and determined that Decedent required admission to the ICU. (Id., ¶¶ 36.) Decedent was ordered admitted to the ICU at 12:05 p.m. on January 27, 2022, and transferred on January 28, 2022 around 7:32 a.m. (Id., ¶ 37.) Dr. Wachtel states that a wait of less than 20 hours for an ICU bed is common and, in any event, Decedent received ICU-level care while in the emergency department even if he was not transferred to the ICU. (Id., ¶¶ 37-38.) This care included continuous monitoring, advanced respiratory support, ongoing reassessment of oxygenation and blood pressure, central line placement, and medical management of hypotension. (Id., ¶ 38.) In addition, when Decedent's inability to move his extremities was brought to the physician's attention, a neurology consultation was promptly obtained. (Id., ¶ 38.)

Dr. Wachtel also opines that the nursing care provided to Decedent met the applicable standard of care because his oxygen saturation, blood pressure, and clinical condition were repeatedly assessed and documented. (Id., ¶¶ 40-41.) Furthermore, the nursing staff responded to changes in Decedent's condition by communicating with the treating physicians and facilitating the implementation of medical interventions, as evidenced by the progressively advanced respiratory support that was implemented as ordered. (Id., ¶ 41-42.)

Plaintiffs did not oppose this motion by submitting a competing expert declaration. Accordingly, Plaintiffs fail to show that a triable issue of material fact exists.

VI. CONCLUSION

In light of the foregoing, the motion
for summary judgment is GRANTED.

Moving party to give notice.

Dated
this 30th
day of June 2026

William
A. Crowfoot

Judge of the Superior Court

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.